

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MARCO VASQUEZ,

Plaintiff,

Index No.: 30630/2020E
SECOND
AMENDED
VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. JAMES R. CAUSA, Sgt.
VICENTE E. PEREZ, UNDERCOVER OFFICER 368,
Det. DANIEL RIVERA and OFFICERS JOHN AND
JAMES DOE, names being fictitious and meant to
designate additional offending officers, all Individually
and in their official capacities,

Defendants.
-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF MARCO VASQUEZ

1. At the time of the commencement of this action, plaintiff MARCO VASQUEZ

was and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.

3. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about July 13, 2019, Det. JAMES R. CAUSA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about July 13, 2019, at approximately 1 A.M., Det. JAMES R. CAUSA, Shield 1852, was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about July 13, 2019, Sgt. VICENTE E. PEREZ, tax registration number 946108, was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about July 13, 2019, at approximately 1 A.M., Sgt. VICENTE E. PEREZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about July 13, 2019, UNDERCOVER OFFICER 368, whose name is presently unknowable by Plaintiff, but is necessarily known to Defendants by virtue of

his/her involvement with the arrest of Plaintiff, was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about July 13, 2019, at approximately 1 A.M., UNDERCOVER OFFICER 368 was working and acting within the scope of his/her employment as a Police Officer, and under the color of law.

11. That on and about July 13, 2019, Det. DANIEL RIVERA, was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about July 13, 2019, at approximately 1 A.M., Det. DANIEL RIVERA was working and acting within the scope of his/her employment as a Police Officer, and under the color of law.

13. That on and about July 13, 2019, OFFICERS JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiff, but are necessarily known to Defendants by virtue of their involvement with the arrest of Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

14. That on and about July 13, 2019, at approximately 1 A.M., OFFICERS JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police OFFICERS, and under the color of law.

15. That on or about July 13, 2019 at approximately 1 A.M., at or near the intersection of West Fordham Road and University Avenue, Bronx, New York, the Plaintiff MARCO VASQUEZ was improperly arrested and confined without knowledge of warrant, without privilege, proper authority or justification, having no reason in law or in fact to arrest or confine MARCO VASQUEZ.

16. That immediately prior thereto, the plaintiff MARCO VASQUEZ was lawfully present at the above location.

17. That immediately thereafter a police officer arrived and approached, questioned, detained and searched Plaintiff.

18. That the Defendants, their agents, servants and/or employees arrested the Plaintiff MARCO VASQUEZ without any basis in law or fact and without reasonable, probable or just cause or justification.

19. That the defendants, their agents, servants and/or employees arrested the plaintiff MARCO VASQUEZ without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

20. That said officer did withhold their names from Plaintiff and in a continuing effort to hide their identities and avoid civil liability and service of process, did deface

and scratch off their names from the only paperwork provided to Plaintiff, a property voucher.

21. That Defendants, their agents, servants and/or employees continued to detain Plaintiff MARCO VASQUEZ and threaten and deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

22. That OFFICERS JOHN AND JAMES DOE, failed to intercede in the arrest of Plaintiff despite having known, or having should have have known, his arrest was unlawful and lacking in a probable cause.

23. That the Defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff MARCO VASQUEZ, who was aware of his unlawful detention and confinement and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

24. That all criminal charges brought against plaintiff, which were brought under arrest number B19628882 in the Criminal Court of the City of New York, Bronx County regarding the incidents of July 13, 2019, were dismissed when the District Attorney of Bronx County, by Assistant District Attorney Gilbert S. Bayonne, Declined to Prosecute

plaintiff due to insufficient evidence to support the criminal charges asserted by defendants and a lack of probable cause.

25. The aforesaid wrongful detention continued for a period of time believed to exceed 24 hours.

26. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population without reprimand to the offending officers.

27. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

28. Said policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which result in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police

Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

29. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

30. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department..

31. Furthermore patterns of the NYPD and their officers alleging persons were involved in the sale of narcotics when the arrested persons were not, in fact, in any way involved in the sales of narcotics, and there was no probable cause to arrest said persons has occurred to such individuals as Jonathan Bailey on August 3, 2011; Jose Reyes on

December 14, 2011; Frank Aquino on August 22, 2012; Martin Delozier and Terrance Watson on October 12, 2012; Bryan Madera on April 8, 2013; Anthony Jones on June 5, 2013; Manuel Lugo on June 14, 2013; Derrick Gray on September 5, 2014, Renard Grooms on September 10, 2014; Ruben Perez on July 20, 2015; John Lawrence on August 3, 2015, Tomas Robles on June 28, 2018 as well as hundreds of other innocent persons know to the defendants by virtue of the dismissal of all charges against such persons, for, amongst other reasons, a lack of evidence, and complaints, claims and actions brought against said officers, and upon the CITY OF NEW YORK's own tabulations and investigations. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf. That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of

the New York City Police Department, found at <https://>

www.independentpanelreportnypd.net and incorporated herein.

32. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

33. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, deprived the Plaintiff MARCO VASQUEZ of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

34. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

35. That as a result of the foregoing, the Plaintiff MARCO VASQUEZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE**PLAINTIFF MARCO VASQUEZ**

36. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 35 as though more fully set forth herein.

37. That on October 8, 2019, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

38. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant,

39. That defendant CITY OF NEW YORK conducted and plaintiff did testify at a General Municipal Law §50h hearing of plaintiff conducted on January 7, 2020.

40. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

41. That on or about July 13, 2019 at approximately 1 A.M., at or near the intersection of West Fordham Road and University Avenue, Bronx, New York, the Plaintiff MARCO VASQUEZ was improperly arrested and confined without knowledge of warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest MARCO VASQUEZ.

42. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiff MARCO VASQUEZ of Due Process under Law.

43. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, Det. JAMES R. CAUSA, Sgt. VICENTE E. PEREZ, UNDERCOVER OFFICER 368, Det. DANIEL RIVERA, and OFFICERS JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the Defendants' actions amounted to False Arrest, and the Defendants were otherwise careless, reckless and negligent.

44. That the Plaintiff MARCO VASQUEZ, being aware of his unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, Det. JAMES R. CAUSA, Sgt. VICENTE E. PEREZ, UNDERCOVER OFFICER 368, Det. DANIEL RIVERA, and OFFICERS JOHN AND/OR JAMES DOE.

45. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

46. That as a result of the foregoing, the plaintiff MARCO VASQUEZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF MARCO VASQUEZ

47. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 46 as though more fully set forth herein.

48. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

49. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals.

50. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiff MARCO VASQUEZ was denied freedom and rights under the federal and state constitutions and received great and severe

injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiff and for the purchase of drugs and medicines, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual vocation and avocations; all to the Plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

51. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second and Third Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
April 5, 2021



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

MARCO VASQUEZ

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Det. James R. Causa, Shield 1852, Vicente E. Perez, Tax Reg No 946108; Undercover Officer 368, Det.
Daniel Rivera, Shield 07978; NARCBX, 1 Police Plaza, Room 1310, New York NY 10038

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

MARCO VASQUEZ

I have read the annexed

SECOND AMENDED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiffs is that affirmant is presently maintaining his office outside of the county wherein plaintiffs resides due to the NY PAUSE.

DATED: Bronx, N.Y.

April 5, 2021



JONATHAN L. GLEIT, ESQ.